



Bill Number: S.B. 1009

Kavanagh Floor Amendment

Reference to: printed bill

Amendment drafted by: Mason Holler

FLOOR AMENDMENT EXPLANATION

- Specifies that the cardiopulmonary resuscitation and automated external defibrillator training must be consistent with national standards in addition to being based on the most current national evidence-based emergency cardiovascular care guidelines.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1009
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-718.01, Arizona Revised Statutes, is amended
3 to read:

4 15-718.01. Instruction on cardiopulmonary resuscitation and
5 the use of automated external defibrillators:
6 exemptions; definitions

7 A. ~~On or before July 1, 2019,~~ School districts and charter schools
8 shall provide public school pupils with one or more training sessions in
9 ~~BOTH~~ cardiopulmonary resuscitation, ~~through the use of psychomotor skills~~
10 ~~in an age-appropriate manner,~~ AND THE USE OF AUTOMATED EXTERNAL
11 DEFIBRILLATORS during high school. This training ~~shall~~ MUST be based on
12 the most current national evidence-based emergency cardiovascular care
13 guidelines[, CONSISTENT WITH NATIONAL STANDARDS.] for cardiopulmonary
14 resuscitation AND THE USE OF AUTOMATED EXTERNAL DEFIBRILLATORS. THE
15 TRAINING IN CARDIOPULMONARY RESUSCITATION MUST INCLUDE TRAINING THROUGH
16 THE USE OF PSYCHOMOTOR SKILLS IN AN AGE-APPROPRIATE MANNER. A school
17 district or charter school may assign homework to satisfy the requirements
18 of ~~this subsection and subsections B and E of this section,~~ if the
19 completion of the homework is verified by a teacher or parent.

20 B. School district or charter school instruction that results in
21 ~~cardiopulmonary resuscitation~~ certification IN CARDIOPULMONARY
22 RESUSCITATION OR THE USE OF AUTOMATED EXTERNAL DEFIBRILLATORS, OR BOTH,
23 must be provided by a certified ~~cardiopulmonary resuscitation~~ trainer.
24 This subsection does not require a teacher or administrator who
25 facilitates, provides or oversees the instruction to be ~~an authorized A~~
26 CERTIFIED trainer ~~of cardiopulmonary resuscitation~~ if the instruction does
27 not result in ~~cardiopulmonary resuscitation~~ certification IN

1 CARDIOPULMONARY RESUSCITATION OR THE USE OF AUTOMATED EXTERNAL
2 DEFIBRILLATORS, OR BOTH.

3 C. The instruction provided ~~under~~ PURSUANT TO subsection A of this
4 section must include the hands-on practicing of cardiopulmonary
5 resuscitation AND THE USE OF AUTOMATED EXTERNAL DEFIBRILLATORS, except for
6 students who are enrolled in an online school as defined in section
7 15-808.

8 D. A SCHOOL DISTRICT OR CHARTER SCHOOL SHALL EXCUSE A pupil ~~shall~~
9 ~~be excused~~ from the instruction on cardiopulmonary resuscitation AND THE
10 USE OF AUTOMATED EXTERNAL DEFIBRILLATORS at the request of either:

11 1. The pupil's parent.

12 2. A pupil who provides written documentation that the pupil has
13 previously received training in or is currently certified in
14 cardiopulmonary resuscitation OR THE USE OF AUTOMATED EXTERNAL
15 DEFIBRILLATORS, OR BOTH.

16 3. If the pupil is a child with a disability as defined in section
17 15-731, the pupil's individualized education program team if the
18 individualized education program team makes a determination to excuse the
19 pupil from the instruction.

20 E. A school district or charter school may accept from any person,
21 public entity or other legal entity in-kind donations of materials,
22 equipment or services that may be used in the instruction on
23 cardiopulmonary resuscitation OR THE USE OF AUTOMATED EXTERNAL
24 DEFIBRILLATORS, OR BOTH.

25 F. A school district or charter school may use any of the following
26 persons to provide instruction and training pursuant to this section:

27 1. Emergency medical technicians.

28 2. Paramedics.

29 3. Fire department personnel.

30 4. Police officers.

31 5. Representatives of the American heart association.

32 6. Representatives of the American red cross.

33 7. Teachers.

34 8. Other school employees.

35 9. Other similarly qualified persons.

36 G. For the purposes of this section: ~~;~~

37 1. "AUTOMATED EXTERNAL DEFIBRILLATOR" HAS THE SAME MEANING
38 PRESCRIBED IN SECTION 36-2261.

39 2. "Psychomotor skills" means sequences of physical actions that
40 are practiced in a manner that supports cognitive learning.

41 Sec. 2. Section 43-1089.01, Arizona Revised Statutes, is amended to
42 read:

43 43-1089.01. Tax credit: public school fees and contributions:
44 definitions

45 A. A credit is allowed against the taxes imposed by this title for
46 the amount of any fees paid or cash contributions made by a taxpayer or on
47 the taxpayer's behalf pursuant to section 43-401, subsection G during the

1 taxable year to a public school located in this state for the following
2 public school purposes:

- 3 1. Standardized testing for college credit or readiness offered by
4 a widely recognized and accepted educational testing organization.
- 5 2. The career and technical education industry certification
6 assessment.
- 7 3. Preparation courses and materials for standardized testing.
- 8 4. ~~Cardiopulmonary resuscitation~~ Training IN CARDIOPULMONARY
9 RESUSCITATION OR THE USE OF AUTOMATED EXTERNAL DEFIBRILLATORS, OR BOTH,
10 pursuant to section 15-718.01.
- 11 5. Extracurricular activities.
- 12 6. Character education programs.
- 13 7. From and after June 30, 2019 through June 30, 2029:
 - 14 (a) Acquiring capital items, as defined in the uniform system of
15 financial records, including those items listed in section 15-903,
16 subsection C, paragraphs 2 through 8.
 - 17 (b) Community school meal programs. An amount paid by an
18 individual to receive a meal or a meal card does not qualify as a fee or
19 donation for community school meal programs.
 - 20 (c) Student consumable health care supplies.
 - 21 (d) Playground equipment and shade structures for playground
22 equipment.
- 23 B. The amount of the credit shall not exceed:
 - 24 1. \$200 for a single individual or a head of household.
 - 25 2. \$400 for a married couple filing a joint return.
- 26 C. A husband and wife who file separate returns for a taxable year
27 in which they could have filed a joint return may each claim only one-half
28 of the tax credit that would have been allowed for a joint return.
- 29 D. The credit allowed by this section is in lieu of any deduction
30 pursuant to section 170 of the internal revenue code and taken for state
31 tax purposes.
- 32 E. If the allowable tax credit exceeds the taxes otherwise due
33 under this title on the claimant's income, or if there are no taxes due
34 under this title, the taxpayer may carry the amount of the claim not used
35 to offset the taxes under this title forward for not more than five
36 consecutive taxable years' income tax liability.
- 37 F. The site council of the public school that receives
38 contributions that are not designated for a specific purpose shall
39 determine how the contributions are used at the school site. If a charter
40 school does not have a site council, the principal, director or chief
41 administrator of the charter school shall determine how the contributions
42 that are not designated for a specific purpose are used at the school
43 site. If at the end of a fiscal year a public school has unspent
44 contributions that were previously designated for a specific purpose or
45 program and that purpose or program has been discontinued or has not been
46 used for two consecutive fiscal years, these contributions shall be
47 considered undesignated in the following fiscal year for the purposes of

1 this subsection, and the site council may transfer these undesignated
2 contributions to any school within the same school district.

3 G. A public school that receives fees or a cash contribution
4 pursuant to subsection A of this section shall report to the department,
5 in a form prescribed by the department, by February 28 of each year the
6 following information:

7 1. The total number of fee and cash contribution payments received
8 during the previous calendar year.

9 2. The total dollar amount of fees and contributions received
10 during the previous calendar year.

11 3. The total dollar amount of fees and contributions spent by the
12 school during the previous calendar year, categorized by specific
13 standardized testing, preparation courses and materials for standardized
14 testing, extracurricular activity or character education program.

15 H. For the purposes of this section, a contribution for which a
16 credit is claimed and that is made on or before the fifteenth day of the
17 fourth month following the close of the taxable year may be applied to
18 either the current or preceding taxable year and is considered to have
19 been made on the last day of that taxable year.

20 I. For the purposes of this section:

21 1. "Career and technical education industry certification
22 assessment" means an assessment for career and technical preparation
23 programs for pupils.

24 2. "Character education programs" means a program described in
25 section 15-719.

26 3. "Community school meal program" means a school meal program that
27 takes place before or after the regular school day on school property.

28 4. "Extracurricular activities" means school-sponsored activities
29 that may require enrolled students to pay a fee in order to participate,
30 including fees for:

31 (a) Band uniforms.

32 (b) Equipment or uniforms for varsity athletic activities.

33 (c) Scientific laboratory materials.

34 (d) In-state or out-of-state trips that are solely for competitive
35 events. Extracurricular activities do not include any senior trips or
36 events that are recreational, amusement or tourist activities.

37 5. "Public school" means a school that is part of a school
38 district, a career technical education district or a charter school.

39 6. "Standardized testing for college credit or readiness" includes
40 the SAT, PSAT, ACT, advanced placement and international baccalaureate
41 diploma tests and other similar tests.

42 7. "Student consumable health care supplies" includes tissues, hand
43 wipes, bandages and other health care consumables that are generally used
44 by children.

45 8. "Widely recognized and accepted educational testing
46 organization" means the college board, the ACT, the international
47 baccalaureate and other organizations that are widely recognized and

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1 accepted by colleges and universities in the United States and that offer
2 college credit and readiness examinations.

3 Enroll and engross to conform

4 Amend title to conform

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